

24STCV07727 24STCV07727

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 19, 2026

CASE NUMBER

24STCV07727

MOTION

Motion for Leave to Amend Cross-Complaint

MOVING PARTIES

Defendants and Cross-Complainants Ernesto Soltero and
Gabriela Robles

OPPOSING PARTY

Plaintiff and Cross-Defendant Tiffany McBride

MOTION

Defendants

and Cross-Complainants Ernesto Soltero ("Soltero") and Gabriela Robles (collectively, "Defendants") move for leave to file an amended cross-complaint. Plaintiff and Cross-Defendant Tiffany McBride ("Plaintiff") opposes the motion.

ANALYSIS

Under Code of

Civil Procedure section 473, subdivision (a)(1), "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by the code." Thus, the Court has wide discretion to allow either party to amend pleadings "upon any terms as may be just." (Code Civ. Proc., § 473, subd. (a)(1).)

Judicial policy

favors resolution of all disputed matters between the parties and, therefore, leave to amend is liberally granted. (Berman vs. Bromberg (1986) 56 Cal.App.4th 936, 945.) "[I]t is an abuse of discretion for the court to deny leave to amend where the opposing party was not misled or prejudiced by the amendment." (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048.)

Under California

Rules of Court, rule 3.1324(a), a motion to amend a pleading must include a copy of the proposed amendment and state the allegations the moving party proposes to add or delete. This rule also requires the moving party to provide a declaration stating the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324(a).)

Defendants are

self-represented and rely on Soltero's declaration in which he states Defendants seek to delete the eighth cause of

action for unjust enrichment and add causes of action for retaliatory eviction and tenant harassment. (Declaration of Ernesto Soltero, ¶¶ 4-6.) Soltero adds he received records from Los Angeles Department of Building and Safety and the Los Angeles Housing Department regarding the underlying dispute between Plaintiff and Defendants on June 23, 2025; on September 30, 2025, Plaintiff then requested dismissal of this action pursuant to the purported settlement between the parties; the Court did not vacate the dismissal until March 23, 2026; and, after Defendant filed a motion for reconsideration of the Court's ruling to vacate the dismissal on March 28, 2026 , and before that motion was denied on July 28, 2026, Defendants filed the instant motion on June 11, 2026. (Id., ¶¶ 18-24.) Defendants thus have adequately explained why they did not assert these claims in connection with the original cross-complaint, which was filed on July 3, 2024.

In opposition, Plaintiff asks the Court to condition amendment, among other things,[1] on Defendants' bearing "the costs occasioned by the amendment, including Plaintiff's reasonable costs of the additional discovery the new claims require." (Opposition, p. 12.) Plaintiff cites no authority under which the Court could require Defendants to bear Plaintiff's discovery costs simply because Defendants added additional claims to this action. The Court cannot impose conditions on leave to amend beyond "those conditions which are just, i.e., intended to compensate . . . for any inconvenience belated amendment may cause." (Armenta ex rel. City of Burbank v. Mueller Co. (2006) 142 Cal.App.4th 636, 642.) To the extent, Plaintiff finds it necessary to conduct discovery on any of the new claims Defendants will allege, the Court does not find any delay in seeking amendment warrants Defendants covering some undetermined costs Plaintiff may incur and, in particular, regarding discovery related to such claims. Therefore, the Court denies Plaintiff's request for being unsupported and unreasonable.

As an aside, in granting any party's request for amendment, the Court will consider requests by the parties to continue trial or any related deadlines, as necessary. However, any delay of trial and other related deadlines is not automatically prejudicial such that denial of the motion is warranted. (Higgins v. Del Faro (1981) 123 Cal.App.3d 558, 564-565.)

Under the

circumstances detailed above, the Court finds the policy in favor of resolving all disputes between Plaintiff and Defendants in one action outweighs any prejudice to Plaintiff which may result from amendment. Accordingly, the motion is granted.

CONCLUSION AND ORDER

Defendants' motion

to file an amended cross-complaint is granted, and Defendants are to separately serve and file the pleading forthright. Plaintiff will have statutory time to respond to the amended complaint.

Defendants are to

give notice of the Court's ruling and to file proof of service of same.

[1]Such

conditions are also the subject of an ex parte application Plaintiff has brought which is scheduled to be heard on the same day as this motion.